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Case Number: 25STCV25541 Hearing Date: July 10, 2026 Dept: 509

Liduvina Flores v. Daniel Sanchez, et al.

(1) DEMURRER TO FIRST AMENDED COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY: Defendants Daniel Sanchez and Linda Calderon

RESPONDING PARTY(S): Plaintiff Liduvina Flores

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiff Liduvina Flores (Plaintiff) brings this action against her landlord Daniel Sanchez (Sanchez) and property manager Linda Calderon (Calderon, collectively, Defendants) regarding habitability of her former residential rental unit located at 4141 Michigan Avenue, Los Angeles, California 90063. Plaintiff brings causes of action for: (1) violation of Los Angeles County Rent Stabilization & Tenant Protections Ordinance (L.A. County Code ch. 8.52); (2) unlawful rent increase and unauthorized fees (Civil Code § 827; Los Angeles County Code §§ 8.52.040,; (3) breach of the implied warranty of habitability; (4) retaliatory eviction/retaliatory acts (Civil Code § 1942.5); (5) negligence per se; (6) private nuisance; (7) breach of the covenant of quiet enjoyment; (8) defamation (slander per se); and (9) unfair business practices (Business and Professions Code § 17200 et seq.).

Defendants now demur to the first, second, fourth, fifth, sixth, eighth, and ninth causes of action in the first amended complaint (FAC) and move to strike portions within. Calderon, individually, demurs to the third and seventh causes of action. Plaintiff opposed.

TENTATIVE RULING:

Calderon's Demurrer to the Third and Seventh Causes of Action is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendants' Demurrer to the First and Second Causes of Action is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendants' Demurrer to the Fourth Cause of Action is OVERRULED.

Defendants' Demurrer to the Fifth Cause of Action is SUSTAINED WITH 30 DAYS LEAVE TO AMEND.

Defendants' Demurrer to the Sixth, Eighth, and Ninth Causes of Action is SUSTAINED. Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Defendants' Motion to Strike is DENIED.

Moving parties are ordered to give notice, unless waived.

DISCUSSION:

Demurrer to First Amended Complaint

I. Meet and Confer

The Declaration of attorney Anthony O. Egbase does not reflect that the meet and confer requirement was satisfied. The Egbase Declaration only attests to sending an email with no telephonic meet and confer taking place. This is insufficient to satisfy the requirements to meet either telephonically or in person as required by Code of Civil Procedure, section 430.41. However, in the interest of judicial economy, the Court exercises its discretion to address the motion on its merits. The parties are admonished to comply with all meet and confer obligations going forward.

II. Judicial Notice

Defendants seek judicial notice of Exhibit A, the "Stipulated Judgment and Settlement Agreement" entered June 20, 2025, in Linda Calderon v. Liduvina Flores, LASC No. 25STUD03610. Defendants request for judicial notice is GRANTED.

III. Improper Filings

Defendants' demurrer is 19 pages long and their reply is 13 pages long, both of which are over the applicable page limits. (See Cal. Rule of Court, Rule 3.1113(d).) Defendants did not seek ex-parte relief to submit a longer memorandum or reply. (See Cal. Rule of Court, Rule 3.1113(e).) Defendants' motion does not contain a table of contents nor a table of authority. (See Cal. Rule of Court, Rule 3.1113(f).)

Nevertheless, its discretion, the Court considers this improperly filed demurrer and reply. Defendants are admonished to comply with all Rules of Court going forward.

IV. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

V. Analysis

Defendants demur to all causes of action in the FAC.

As an initial note, the Court OVERRULES Defendants' demurrer for uncertainty on the grounds that (a) demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto (see, e.g., Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616); and (b) here, Plaintiff's complaint is not so uncertain that Defendants cannot reasonably respond thereto. Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Second, in their demurrer, Defendants argue the FAC “contains allegations that directly contradict a judicially noticeable prior judgment. The stipulated judgment in the prior unlawful-detainer action conclusively established that possession was awarded to the landlord, the tenant's lease rights were forfeited, and vacatur was required by August 12, 2025. The First Amended Complaint alleges that Plaintiff retained possession and that the unlawful-detainer action was baseless-allegations that are factually and legally inconsistent with the judgment's operative terms.” (Mot. at p. 6:8-13.) Defendants argue the “Court should strike all allegations in the First Amended Complaint that contradict the judgment's operative terms, including but not limited to statements that Plaintiff retained possession or that the unlawful-detainer was baseless.” (Mot. at p. 13:13-15.) First, nowhere does Defendants address which causes of action are barred by the prior proceeding nor do the Defendants clarify where the Court should look in the FAC for such allegations. Second, “[a] demurrer must dispose of an entire cause of action to be sustained.” (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) This request appears incompatible with the instant motion type.

The Court addresses the remaining arguments as to each cause of action in turn.

A. First Cause of Action (Violation of Los Angeles County Rent Stabilization & Tenant Protections Ordinance (LA County Code Ch. 8.52.))

There is no private cause of action under Los Angeles County Code Chapter 8.52. Instead, “The Department is authorized to take any and all appropriate steps it deems necessary to enforce this Chapter.” (Chapter 8.52.145, emphasis added.) Section 8.52 only allows for enforcement by county counsel.

Accordingly, Defendants' demurrer to the first cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

B. Second Cause of Action (Unlawful Rent Increase and Unauthorized Fees)

Plaintiff brings this cause of action for unlawful rent increase and unauthorized fees pursuant to Los Angeles County Code, Chapter 8.52 and Civil Code, section 827. As discussed above, Chapter 8.52 does not create a private cause of action. Therefore, Plaintiff's cause of action is based solely on Civil Code, section 827.

However, Civil Code, section 827, contains no express or implied private right of action. A statute does not create a private cause of action absent legislative intent. (Lu v. Hawaiian Gardens Casino, Inc. (2010) 50 Cal.4th 592, 597.) Civil Code,

section 827, merely makes any change set forth in a notice, as outlined by the section, a part of the lease when a tenant remains in possession of the premises after such notice becomes effective. A violation of this section does not create a new cause of action itself. Instead, this section is a defensive mechanism to avoid collections of improperly noticed rent.

Accordingly, Defendants' demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

C. Third and Seventh Causes of Action (Breach of the Implied Warranty of Habitability and Breach of the Covenant of Quiet Enjoyment)

Calderon demurs to the third and seventh causes of action arguing that as a disclosed agent of the landlord, she is immune to contractual obligations. The Court agrees.

Both causes of action arise out of the contractual relationship (the lease agreement) between Plaintiff and defendant Sanchez. The implied warranty of habitability and quiet enjoyment are not a separate tort duty owed to tenants, but a contractual obligation implied by law in every residential lease. (Green v. Superior Court (1974) 10 Cal.3d 616, 637; Allstate Ins. Co. v. Loo (1996) 46 Cal.App.4th 1794, 1798; Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 588, ["every lease contains an implied covenant of quiet enjoyment."])

However, "the agent defendants may not be held liable under the implied warranty theory, causes of action may be stated against them in tort. [¶] Since the suit for breach of the implied warranty is essentially a contractual one, the trial court correctly ruled the agents could not be held liable on the breach of warranty because an agent is ordinarily not liable on the contract when he acts on behalf of a disclosed principal." (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 928.) Indeed, Plaintiff's opposition confirms that the "First Amended Complaint alleges that Calderon exercised actual control over the tenancy, maintenance, rent collection, tenant communications, and the conduct at issue." (Opp. at p. 6:23-25.) Therefore, Calderon was a known agent acting on behalf of a disclosed principal. These causes of action are therefore improperly pled against Calderon and fail as a matter of law.

Calderon's demurrer to the third and seventh cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

D. Fourth Cause of Action (Retaliatory Eviction / Retaliatory Acts (Civil Code § 1942.5))

"[I]t is unlawful for a lessor to increase rent, decrease services, cause a lessee to quit involuntarily, bring an action to recover possession, or threaten to do any of those acts, for the purpose of retaliating against the lessee because the lessee has lawfully organized or participated in a lessees' association or an organization advocating lessees' rights or has lawfully and peaceably exercised any rights under the law. In an action brought by or against the lessee pursuant to this subdivision, the lessee shall bear the burden of producing evidence that the lessor's conduct was, in fact, retaliatory." (Civ. Code, § 1942.5, subd. (d).)

Defendants argue Plaintiff "fails to state facts sufficient to constitute a cause of action due to temporal defects." (Mot at p. 19:9-10.)

Here, Plaintiff alleges that, "[b]eginning in or about 2019, and continuing thereafter, Plaintiff made repeated complaints to Defendants regarding serious habitability defects, including infestations, mold, water intrusion, and broken locks. Plaintiff also demanded repairs in writing, including by certified letter on or about January 6, 2025, which placed Defendants on notice of their statutory obligations." (FAC ¶68.) "In retaliation for Plaintiff's lawful exercise of her rights, Defendants engaged in a pattern of retaliatory conduct, including but not limited to: (1) increasing Plaintiff's monthly rent by \$80 without legal authority in December 2023; (2) imposing an unauthorized late fee in January 2024; (3) rejecting Plaintiff's partial rent tender in March 2025 made in good faith due to continuing habitability violations; (4) serving an inflated and unlawful Three Day Notice to Pay Rent or Quit on March 11, 2025; and (5) filing a baseless unlawful detainer action on March 28, 2025, alleging that Plaintiff owed "two years' rent," despite having accepted regular payments and Plaintiff having obtained rental assistance." (FAC

¶69.)

These allegations do not have temporal defects. For example, Plaintiff alleges that “Plaintiff also demanded repairs in writing, including by certified letter on or about January 6, 2025.” (FAC ¶68.) Within a couple months, Defendants retaliated by “serving an inflated and unlawful Three Day Notice to Pay Rent or Quit on March 11, 2025; and (5) filing a baseless unlawful detainer action on March 28, 2025, alleging that Plaintiff owed “two years’ rent,” despite having accepted regular payments and Plaintiff having obtained rental assistance.” (FAC ¶69.) These allegations properly support a cause of action for retaliation in violation of Civil Code, section 1942.5.

Defendants make a further argument that “[a]llegations regarding conduct outside the 180-day window should be stricken or moved to a separate common-law retaliation claim with appropriate temporal allegations.” (Mot. at p. 13-15.) However, “[a] demurrer must dispose of an entire cause of action to be sustained.” (Fremont Indemnity Co. v. Fremont General Corp., supra, 148 Cal.App.4th at p. 119.) A demurrer would be improper for this requested relief.

Accordingly, Defendants’ demurrer to the fourth cause of action is OVERRULED.

E. Fifth Cause of Action (Negligence Per Se)

Defendants argue that the fifth cause of action “should be sustained on demurrer as a non-cognizable cause of action.” (Mot. at p. 21:6.) However, negligence is a recognized cause of action.

In opposition, Plaintiff concedes that “that Evidence Code section 669 generally codifies negligence per se as an evidentiary doctrine or presumption that may establish duty and breach within a negligence claim.” (Opp. at p. 7:18-20.) Plaintiff argues that “even if the negligence per se cause of action is technically mislabeled, the factual allegations support a viable negligence/ statutory violation theory... Accordingly, the demurrer should be overruled or, alternatively, Plaintiff should be granted leave to amend to restate this cause of action as ordinary negligence with negligence per se pleaded as a theory” (Opp. at pp. 7:23-8:2.) The best course of action, which appears agreeable to both parties, is to sustain the demurrer, and allow Plaintiff to clarify her cause of action.

Accordingly, Defendants’ demurrer to the fifth cause of action is SUSTAINED. Plaintiff is given 30-days leave to amend.

F. Sixth Cause of Action (Private Nuisance)

When a nuisance claim is based on negligence, it is treated as a negligence claim rather than a distinct cause of action. (El Escorial Owners’ Ass’n v. DLC Plastering, Inc., (2007) 154 Cal.App.4th 1337, 1349.) In Melton, the court sustained a demurrer to a nuisance claim because it merely restated the party’s negligence claims, “using a different label.” (Melton v. Boustred (2010) 183 Cal.App.4th 521, 543.)

¶

Here, to support her cause of action for private nuisance, Plaintiff alleges: “(1) chronic rat and roach infestations that persisted despite repeated complaints and extermination efforts; (2) mold and dampness caused by water intrusion; (3) broken and unsafe window locks; (4) nonfunctional and rodent contaminated appliances, including the oven and refrigerator, rendering the kitchen unsafe for food preparation and storage; (5) diversion of common-area electricity and water-heating systems to Plaintiff’s utility account, unlawfully increasing Plaintiff’s utility expenses; (6) denial of access to the driveway without legal justification; and (7) extended periods of displacement and loss of use of the kitchen during incomplete and delayed repair efforts.” (FAC ¶85.) Plaintiff’s private nuisance claim therefore merely restates Plaintiff’s negligence claim with a different label.

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Accordingly, Defendants' demurrer to the sixth cause of action is SUSTAINED. Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy¿(1976) 18 Cal.3d 335, 348.)¿While¿this cause of action is only available if¿Plaintiff¿withdraws¿their claim for¿negligence,¿Plaintiff could amend their FAC to successfully allege this cause of action¿instead. Plaintiffs must demonstrate such desire at the hearing if they seek leave to amend.¿

G. Eighth Cause of Action (Defamation (Slander per se))

Slander per se requires: (1) a false and unprivileged publication; (2) orally uttered to a

person; and (3) naturally tending directly to injure a person, in respect to office, profession,

trade, or business (slander per se), or special damages. (Mann v. Quality Old Time Service, Inc, (2004) 120 Cal.App.4th 90, 106, disapproved on other grounds by Baral v. Schnitt (2016) 1 Cal.5th 376, 392.)

Here, Plaintiff does not sufficiently allege slander per se.

Plaintiff alleges: "[s]pecifically, Manager told neighbors and others that Plaintiff was "behind on rent" and "owed two years' rent," despite Manager's acceptance of payments and initiation of litigation over disputed amounts, and further asserted that Plaintiff kept dogs at the Property "without authorization" and that the dogs were "vicious," while falsely claiming a lack of knowledge of the dogs' presence." (FAC ¶100.) "Plaintiff suffered reputational harm, humiliation, emotional distress, and loss of community standing." (FAC ¶104.)

Slander per se is actionable without proof of special damages (Gonzalez v. Fire Ins. Exchange¿(2015) 234 Cal.App.4th 1220, 1240), however, Plaintiff must sufficiently alleged harm to her in her occupation or other unique circumstances inapplicable here. (Civ Code, §46; Regalia v. The Nethercutt Collection¿(2009) 172 Cal.App.4th 361, 369.) These statements "must be evaluated to determine if "upon their face" they "clearly convey a meaning" that fits within subdivision (3) of Civil Code section 46, and therefore, if defamatory, are slander per se." (Id. at p. 369-370, internal citations omitted.) These statements do not clearly convey a meaning that is actionable under Civil Code, section 46.

Accordingly, Defendants' demurer to the eighth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

H. Ninth Cause of Action (Violation of Business and Professions Code, Section 17200)

Business and Professions Code, section 17200 prohibits "any unlawful, unfair or fraudulent business act or practice." (Bus. & Prof. Code § 17200; see Clark v. Superior Court (2010) 50 Cal.4th 605, 610.) A violation of other laws is deemed independently actionable under the UCL. (See Law Offices of Mathew Higbee v. Expungement Assistance Services (2013) 214 Cal.App.4th 544, 554.) "Virtually any law, federal, state or local, can serve as a predicate for a section 17200 action."

(Ibid. (quoting *Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335).) To establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (See *West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 806.) “A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1473.) Further, statutory claims must be pled with particularity. (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 173.)

Here, Plaintiff alleges, “Defendants engaged in unlawful, unfair, and fraudulent business practices in the management and operation of the Property. Such practices included, without limitation: (1) failing to register the Property with the Los Angeles County Rent Stabilization Program in violation of Los Angeles County Code Chapter 8.52; (2) imposing unlawful rent increases and unauthorized late fees in violation of Civil Code section 827 and Los Angeles County Code sections 8.52.040 and 8.52.060; (3) interfering with and diverting Plaintiff’s utilities in violation of Civil Code section 789.3; (4) maintaining the Property in uninhabitable and unsafe condition in violation of Civil Code section 1941.1; (5) retaliating against Plaintiff for exercising her lawful rights in violation of Civil Code section 1942.5; and (6) filing an unlawful detainer action based on inflated and unlawful rent demands, thereby misusing judicial process for improper purposes.” (FAC ¶108.)

These allegations are deficient. All violations are merely restatements of prior causes of action. Plaintiff is attempting to use this cause of action as a “all-purpose substitute for a tort or contract action” instead of alleging an independent cause of action. (*Cortez v. Purolator Air Filtration Products Co.*, *supra*, 23 Cal.4th at p. 173.) Therefore, the complaint does not allege sufficient facts to support a cause of action for violation of Business and Professions Code, section 17200.

Accordingly, Defendants’ demurer to the ninth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro § 436.)

II. Analysis

Defendants seek to strike four categories of allegations in the FAC. As a result of the concurrent demurrer, the request to strike: (1) the fifth cause of action; and (2) relief sought under the UCL cause of action, are MOOT.

Defendants have two remaining requests to strike: (1) “Allegations Contradicted by Judicially Noticeable Court Records;” and (2) “All Prayers for Prospective Injunctive Relief.”

However, nowhere does Defendants address which allegations are barred by the prior proceeding nor do the Defendants clarify where the Court should look in the FAC for such allegations. “Where the motion to strike is based on matter of which

the court may take judicial notice . . . such matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (Code Civ. Proc., § 437, subd. (b), emphasis added.) “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).) By failing to comply with the Rules of Court, Defendants’ motion fails to identify what Defendants seek to strike from the FAC.

Accordingly, Defendants’ motion to strike is DENIED.

IT IS SO ORDERED.

Dated: July 10, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.